

STATE OF NEW YORK

8396--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. WOERNER, LEVENBERG, ROZIC, SHIMSKY, TORRES, BRONSON -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to enacting the student suicide prevention act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "student suicide prevention act".

3 § 2. The education law is amended by adding a new article 2-B to read
4 as follows:

ARTICLE 2-B

STUDENT SUICIDE PREVENTION

Section 24. Legislative intent.

25. Definitions.

26. Policies, procedures, and guidelines.

27. Reporting.

28. Application.

29. Severability and construction.

13 § 24. Legislative intent. The legislature finds and declares the
14 following: 1. According to data from the National Center for Health
15 Statistics, suicide remains a critical issue. In two thousand twenty-
16 three, suicide was the second leading cause of death for youth and young
17 adults ten to twenty-four years of age, inclusive, in both the United
18 States and in New York state.

19 2. As children and teens spend a significant amount of their young
20 lives in school, the personnel who interact with them on a daily basis

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 are essential gatekeepers for recognizing warning signs of suicide and
2 making the appropriate referrals for help.

3 3. In a national survey conducted by the Jason Foundation, a teacher
4 was identified as the number one person to whom a student would turn to
5 help a friend who might be suicidal. It is imperative that when a young
6 person comes to a teacher for help, such teacher has the knowledge,
7 tools, and resources to respond correctly.

8 4. In the year two thousand twenty-three, the federal Centers for
9 Disease Control and Prevention found in its Youth Risk Behavior Survey
10 that lesbian, gay, bisexual and questioning plus (LGBQ+) high school
11 students are more than three times more likely to seriously consider
12 attempting suicide than their heterosexual peers and one in five
13 attempted suicide. Moreover, more than three in five LGBQ+ students
14 experienced persistent feelings of sadness or hopelessness. In the two
15 thousand twenty-four Trevor Project National Survey, two in five of
16 lesbian, gay, bisexual, transgender, queer or questioning plus (LGBTQ+)
17 youth seriously considered attempting suicide in the past year, and
18 twelve percent attempted suicide.

19 5. There are national hotlines available to help adults and youth,
20 including LGBTQ youth, who are experiencing suicidal ideation or who are
21 worried about a family member or peer who may be at risk, including the
22 National Suicide Prevention Lifeline, the Crisis Text Line, the Trevor
23 Project Lifeline, and TrevorChat.

24 6. According to the Family Acceptance Project, research has found
25 that, for an LGBTQ youth, having at least one supportive adult can
26 reduce the youth's risk of suicide.

27 7. New York state schools face the serious issues of students at high
28 risk of suicide and death by suicide in the school communities. School
29 personnel must be supported by clear policies and procedures, which
30 serve as an easily-accessible roadmap, eliminate confusion over educator
31 roles and the referral process, and equip educators with the tools to
32 respond safely when a suicide does occur in the school community.

33 § 25. Definitions. For the purposes of this article, the following
34 terms shall have the following meanings: 1. "Crisis situation" means a
35 situation where a teacher or other local educational agency employee
36 believes a student or other individual is in imminent danger of a
37 suicide attempt.

38 2. "LGBTQ" means lesbian, gay, bisexual, transgender, queer or ques-
39 tioning.

40 3. "Local educational agency" means a school district, board of coop-
41 erative educational services, school, or the education department.

42 4. "Suicide intervention" means specific actions schools can take in
43 response to suicidal behavior by a student, including, but not limited
44 to:

45 a. student supervision;
46 b. notification of parents or guardians;
47 c. crisis situation response protocols;
48 d. when and how to request an immediate mental health assessment or
49 emergency services; and

50 e. school re-entry support following a student mental health crisis.

51 5. "Suicide postvention" means planned support and interventions
52 schools can implement after a suicide attempt or suicide death of a
53 member of the school community that are designed to:

54 a. reduce the risk of the spread of suicidal thoughts or intentions;
55 b. provide support for affected students and school-based personnel;
56 c. address the social stigma associated with suicide; and

1 d. disseminate factual information about suicide and its prevention.

2 6. "Suicide prevention" means specific actions schools can take to
3 recognize and reduce suicidal behavior, including, but not limited to:

4 a. identifying risks and protective factors for suicide and suicide
5 warning signs;

6 b. establishing a process by which students are referred to a mental
7 and behavioral health provider for help;

8 c. making available school-based and community-based mental health
9 supports;

10 d. providing the location of available online and community suicide
11 prevention resources, including local crisis centers and hotlines;

12 e. adopting policies and protocols regarding suicide prevention,
13 intervention, and postvention, school safety, and response to crisis
14 situations;

15 f. training for classroom teachers, school counselors, school psychol-
16 ogists, school social workers, school coaches, school administrators or
17 supervisors and the superintendent of schools in recognizing suicide
18 risks and warning signs and how to refer students for further assessment
19 and evaluation; and

20 g. instruction to students in problem-solving and coping skills to
21 promote students' mental, emotional, and social health and well-being,
22 and instruction in recognizing and appropriately responding to signs of
23 suicidal intent in others.

24 § 26. Policies, procedures, and guidelines. 1. The governing board or
25 body of every local educational agency that serves students in grades
26 seven to twelve, inclusive, shall, before the first day of August, two
27 thousand twenty-seven, adopt policies, procedures, and guidelines on
28 student suicide prevention, intervention, and postvention for students
29 in such grades. Such policies, procedures, and guidelines shall be
30 developed in consultation with school and community stakeholders,
31 school-employed mental health professionals, and suicide prevention
32 experts, and shall include, but not be limited to:

33 a. methods to increase awareness of the relationship between suicide
34 and suicide risk factors including, but not limited to:

35 i. mental health and substance use conditions;

36 ii. childhood abuse, neglect, or trauma;

37 iii. prolonged stress, including individual experiences such as bully-
38 ing, harassment, family or relationship stress, or other stressful life
39 events, as well as collective stressors such as systemic bias and
40 discrimination;

41 iv. exposure to another person's suicide, or sensationalized or graph-
42 ic accounts of suicide; and

43 v. previous suicide attempts or history of suicide within a student's
44 family;

45 b. identification of training opportunities on recognizing suicide
46 risks, coordination with training conducted pursuant to article two of
47 this chapter, and identification of referral procedures available to
48 school employees;

49 c. availability of expertise from school employees who have been
50 trained in recognizing suicide risks, and referral procedures;

51 d. how school employees should respond to suspicion, concerns, or
52 warning signs of suicide in students;

53 e. how school employees should respond to a crisis situation where a
54 student is in imminent danger to themself;

1 f. policies and protocols for communication with parents, including
2 those that specify what to do if parental notification is not in the
3 best interest of the student;

4 g. counseling services available within the school for students and
5 their families that are related to suicide prevention;

6 h. availability of information concerning crisis situation inter-
7 vention, suicide prevention, and mental health services in the community
8 for students and their families and school employees;

9 i. identification and development of partnerships with community
10 organizations and agencies, including after-school programs offering
11 mental health and suicide prevention services, for referral of students
12 to health, mental health, substance use, and social support services,
13 including development of at least one memorandum of understanding
14 between the local education agency and such an organization or agency in
15 the community or region, other than a law enforcement agency;

16 j. development of a culturally competent plan to assist survivors of
17 attempted suicide and to assist students and school employees in coping
18 with an attempted suicide or a suicide death within the school communi-
19 ty;

20 k. development of a plan for school re-entry support following a
21 student mental health crisis, including coordination with the student's
22 mental health provider, a designated school-based support person, and a
23 trauma-informed plan focused on reintegrating the student back into the
24 school community; and

25 l. development of any other related program or activity for students
26 or school employees.

27 2. The policies, procedures, and guidelines adopted pursuant to subdi-
28 vision one of this section shall specifically address the needs of high-
29 risk groups, including, but not limited to, the following:

30 a. youth who have lost a friend or family member to suicide;

31 b. youth with disabilities or with chronic health conditions, includ-
32 ing mental health and substance use conditions;

33 c. youth experiencing homelessness or in out-of-home settings, such as
34 foster care;

35 d. LGBTQ youth; and

36 e. students who have been the target of harassment, bullying, coercive
37 control or discrimination.

38 3. The policies, procedures, and guidelines adopted pursuant to subdi-
39 vision one of this section shall be written to ensure that a school
40 employee acts only within the authorization and scope of such employee's
41 credential or license. Nothing in this section shall be construed as
42 authorizing or encouraging a school employee to diagnose or treat mental
43 health conditions unless such employee is specifically licensed and
44 employed to do so.

45 4. The policies, procedures and guidelines adopted pursuant to this
46 section shall incorporate the terms of the school's written contract or
47 memorandum of understanding on the role of law enforcement as required
48 pursuant to section two thousand eight hundred one-a of this chapter,
49 ensure that school officials are solely responsible for responding to
50 student behavior, and make clear that unless otherwise authorized by
51 state law, any determination that a student requires hospital transport
52 for a mental health evaluation shall be made, whenever practicable, by a
53 clinically trained mental health professional employed or contracted by
54 the school. Such student shall be accompanied during such transport by
55 a school social worker, guidance counselor, nurse, therapist or a desig-
56 nated school employee, and such person shall stay with the student until

1 their parent or parent's designee arrives. The school shall be responsi-
2 ble for contacting the parent when such hospital transport is needed.

3 5. To assist local educational agencies in developing policies for
4 student suicide prevention, the department shall develop and maintain
5 model policies, procedures, and guidelines in accordance with this
6 section and a publicly available, annually updated statewide resource
7 guide of mental health, behavioral health and suicide prevention
8 services to serve as a guide for local educational agencies. Such model
9 policies, procedures, and guidelines shall be posted within thirty days
10 of their completion on the department's internet website, along with
11 relevant resources and information to support schools in developing and
12 implementing the policies, procedures, and guidelines required under
13 subdivision one of this section.

14 6. The governing board or body of a local educational agency that
15 serves students in grades seven to twelve, inclusive, shall review, at
16 minimum every fifth year following the effective date of this article,
17 its policies, procedures, and guidelines on student suicide prevention
18 and, if necessary, update such policies, procedures, and guidelines.

19 § 27. Reporting. 1. The commissioner, in conjunction with the commis-
20 sioner of health, shall create a procedure under which incidents of
21 suicide or attempted suicide by students are reported to the department
22 every five years by the first day of September, provided that such
23 reporting shall not contain information identifiable with any individual
24 student. Such procedure shall provide that such reports shall also
25 delineate whether such student was the subject of a report of harass-
26 ment, bullying, coercive control or discrimination; and whether they had
27 transferred into the school within the preceding twelve months. In addi-
28 tion, the department shall request the comptroller to undertake studies
29 to determine compliance throughout the state with the provisions of this
30 article.

31 2. The commissioner shall use such reports and data to identify
32 schools and districts that may benefit from assistance to meet the stan-
33 dards and objectives of this article. The commissioner shall promulgate
34 policies and procedures for improving conditions at these schools to
35 ensure proper training, support, and compliance with all requirements.

36 3. The commissioner shall deliver the report referenced in subdivision
37 one of this section to the temporary president of the senate, speaker of
38 the assembly, minority leader of the senate, minority leader of the
39 assembly, chair and ranking member of the senate education committee and
40 chair and ranking member of the assembly education committee every two
41 years on or before the first day of November.

42 § 28. Application. The provisions of this article shall apply to all
43 private and public educational institutions, including charter schools,
44 in New York state.

45 § 29. Severability and construction. The provisions of this article
46 shall be severable, and if any court of competent jurisdiction declares
47 any phrase, clause, sentence or provision of this article to be invalid,
48 or its applicability to any government agency, person or circumstance is
49 declared invalid, the remainder of this article and its relevant appli-
50 cability shall not be affected. The provisions of this article shall be
51 liberally construed to give effect to the purposes thereof.

52 § 3. Section 10 of the education law, as added by chapter 482 of the
53 laws of 2010, is amended to read as follows:

54 § 10. Legislative intent. The legislature finds that students' ability
55 to learn and to meet high academic standards, and a school's ability to
56 educate its students, are compromised by incidents of discrimination or

1 harassment including bullying, taunting or intimidation. It is hereby
2 declared to be the policy of the state to afford all students in public
3 schools an environment free of discrimination and harassment, whether in
4 the school building or on the internet. The purpose of this article is
5 to foster civility in public schools and to prevent and prohibit conduct
6 which is inconsistent with a school's educational mission.

7 § 4. Subdivisions 1, 2, 7 and 8 of section 11 of the education law,
8 subdivisions 1 and 2 as added by chapter 482 of the laws of 2010 and
9 subdivision 7 as amended and subdivision 8 as added by chapter 102 of
10 the laws of 2012, are amended and three new subdivisions 11, 12 and 13
11 are added to read as follows:

12 1. "School property" shall mean in or within any building, structure,
13 athletic playing field, playground, parking lot, or land contained with-
14 in the real property boundary line of a public elementary or secondary
15 school; or in or on a school bus, as defined in section one hundred
16 forty-two of the vehicle and traffic law; or in or within a school
17 administrative building.

18 2. "School function" shall mean a school board or trustee meeting or a
19 school-sponsored or school-authorized extra-curricular event or activity
20 regardless of where such event or activity takes place, including any
21 event or activity that may take place in another state including but not
22 limited to field trips and athletic practices, scrimmages and events.

23 7. "Harassment" [~~and "bullying"~~] shall mean the creation of a hostile
24 environment by a fellow member of the school community or an agent of
25 such member by conduct or by threats, intimidation or abuse, including
26 by bullying, cyberbullying or coercive control, that (a) has or would
27 have the effect of unreasonably [~~and substantially~~] interfering with [~~a~~]
28 such student's educational performance, opportunities or benefits, or
29 mental, emotional or physical well-being; or (b) reasonably causes or
30 would reasonably be expected to cause [~~a~~] such student to fear for [~~his~~
31 ~~or her~~] their physical safety; or (c) reasonably causes or would reason-
32 ably be expected to cause physical injury or emotional harm to [~~a~~] such
33 student; or (d) occurs off school property and creates or would foresee-
34 ably create a risk of [~~substantial~~] unreasonable disruption within the
35 school environment, where it is foreseeable that the conduct, threats,
36 intimidation or abuse might reach school property. Acts of harassment,
37 [~~and~~] bullying and coercive control shall include, but not be limited
38 to, [~~those~~] acts based on a person's actual or perceived race, color,
39 weight, age, physical characteristics, national origin, ethnic group,
40 religion, religious practice, disability, sexual orientation, gender or
41 sex. For the purposes of this definition the term "threats, intimidation
42 or abuse" shall include verbal and non-verbal actions.

43 8. "Cyberbullying" [~~shall mean~~] is a type of harassment [~~or~~], includ-
44 ing bullying or coercive control as defined in subdivision seven of this
45 section, [~~including paragraphs (a), (b), (c) and (d) of such subdivi-~~
46 ~~sion,~~] where such harassment [~~or bullying~~] occurs through any form of
47 electronic communication, including but not limited to cell phones,
48 email, social media, chat rooms or text messaging.

49 11. "Bullying" is a type of harassment as defined in this section that
50 shall mean a pattern of deliberate aggressive acts by a person or group
51 intended to harm, dominate or humiliate another person who is in any way
52 perceived to be more vulnerable than the aggressor. Bullying may involve
53 verbal attacks, teasing, physical attacks, or threats of harm to such
54 other person or another person, intentionally sharing personal or
55 private information or images about someone without their consent caus-
56 ing embarrassment or reputational harm to them, intentionally altering

1 the personal information or the social media account of a person without
2 their consent, intentionally using artificial intelligence to mimic or
3 alter a person's likeness or voice without their consent, deliberately
4 excluding a person from activities, or other forms of intimidation. The
5 deliberate targeting of a more vulnerable person by one person or a
6 group of persons distinguishes "bullying" from "conflict" or other kinds
7 of aggression not addressed by this article. "Bullying" involves one
8 person or a group with an intent to harm, dominate or humiliate another
9 person who is perceived by the bully as having less power, including but
10 not limited to less physical strength or social power, and in a
11 "conflict" there is a disagreement between two active parties.

12 12. "Coercive control" is a type of harassment as defined in this
13 section that shall mean a pattern of behavior used by a person with
14 leverage over another person to influence such other person's conduct by
15 dominating, isolating or instilling fear or confusion in them and which
16 results in distress or erodes their sense of autonomy or safety. Coer-
17 cive control may manifest between student partners in an affectionate
18 relationship or between a school employee, school coach or board member
19 or trustee and a student, and may involve surveillance over the other
20 person, isolating the other person from friends or family, gaslighting
21 the other person, punishing the other person for asserting autonomy, or
22 asserting rules over the other person's friendships, clothing, move-
23 ments, communications, bodily autonomy or emotional expression through
24 fear, guilt or manipulation.

25 13. "Gaslighting" shall mean the act of manipulating a person into
26 doubting their own perceptions, memory, or understanding of reality.

27 § 5. Subdivision 1 of section 12 of the education law, as amended by
28 chapter 102 of the laws of 2012, is amended to read as follows:

29 1. No student shall be subjected to harassment ~~[or]~~, bullying or coer-
30 cive control by employees, school coaches, school board members or trus-
31 tees, or students on school property ~~[or]~~, at a school function or
32 through any form of electronic communication; nor shall any student be
33 subjected to discrimination based on a person's actual or perceived
34 race, color, weight, national origin, ethnic group, religion, religious
35 practice, disability, sexual orientation, gender, or sex by school
36 employees, school coaches, school board members or trustees, or students
37 on school property ~~[or]~~, at a school function or though any form of
38 electronic communication. Nothing in this subdivision shall be
39 construed to prohibit a denial of admission into, or exclusion from, a
40 course of instruction based on a person's gender that would be permissi-
41 ble under section thirty-two hundred one-a or paragraph (a) of subdivi-
42 sion two of section twenty-eight hundred fifty-four of this chapter and
43 title IX of the Education Amendments of 1972 (20 U.S.C. section 1681,
44 et. seq.), or to prohibit, as discrimination based on disability,
45 actions that would be permissible under section 504 of the Rehabili-
46 tation Act of 1973.

47 § 6. Subdivisions 1, 2, 4 and 5 of section 13 of the education law,
48 subdivisions 1 and 2 as amended and subdivisions 4 and 5 as added by
49 chapter 102 of the laws of 2012, are amended and a new subdivision 6 is
50 added to read as follows:

51 1. Policies and procedures intended to create a school environment
52 that is free from harassment, bullying, coercive control and discrimi-
53 nation, that include but are not limited to provisions which:

54 a. identify the principal, superintendent or the principal's or super-
55 intendent's designee as the school employee charged with receiving
56 reports of harassment, bullying, coercive control and discrimination;

b. enable students and parents to make an oral or written report of harassment, bullying, coercive control or discrimination to teachers, administrators and other school personnel that the school district deems appropriate, as identified in the district's policies, procedures and guidelines;

c. require school employees, school coaches or school board members or trustees who witness harassment, bullying, coercive control or discrimination, or receive an oral or written report of harassment, bullying, coercive control or discrimination, to promptly orally notify the principal, superintendent or the principal's or superintendent's designee, or in the case of an employee, school coach or school board member or trustee who receives a written report, to promptly deliver such report, not later than one school day after such school employee, school coach or school board member or trustee witnesses or receives a report of harassment, bullying, coercive control or discrimination[, ~~and to file a written report with the principal, superintendent or the principal or superintendent's designee not later than two school days after making such oral report~~];

d. require the principal, superintendent or the principal's or superintendent's designee to (i) prepare a written report not later than one school day after receiving an oral report of harassment, bullying, coercive control or discrimination from a school employee, school coach or school board member or trustee; (ii) lead or supervise the thorough investigation of all reports of harassment, bullying, coercive control and discrimination, including to promptly but not later than one school day after receiving a report of harassment, bullying, coercive control or discrimination, contact the individual who made such report, where possible, to discuss allegations, any witnesses or other corroboration including but not limited to screenshots of electronic communications, and desired resolutions, and to prepare a written report of such meeting; and ~~(to)~~ (iii) ensure that such investigation is completed promptly after the completion or receipt of any written reports made under this section;

e. require the school, when an investigation reveals any such verified harassment, bullying, coercive control or discrimination, to take prompt actions reasonably calculated to end the harassment, bullying, coercive control or discrimination, eliminate any hostile environment, create a more positive school culture and climate, prevent recurrence of the behavior, and ensure the safety of the student or students against whom such harassment, bullying, coercive control or discrimination was directed. Such actions shall be consistent with the guidelines created pursuant to subdivision four of this section;

f. prohibit retaliation against any individual who, in good faith, reports, or assists in the investigation of, harassment, bullying, coercive control or discrimination;

f-1. provide for the receipt of credible anonymous tips and information regarding harassment, bullying, coercive control or discrimination;

g. include a school strategy to prevent harassment, bullying, coercive control and discrimination, including but not limited to, parent education sessions and semiannual age-appropriate school assemblies regarding topics such as conflict resolution and de-escalation techniques;

h. require the principal to make a regular report on data and trends related to harassment, bullying, coercive control and discrimination to the superintendent and shall, pursuant to the direction of the board of education or the trustees or sole trustee of such school district, require such report to include the results of a survey shared with fami-

lies, staff and students by the thirty-first of December which asks questions concerning the everyday experiences and perceptions of such stakeholders with respect to safety and the school environment. The results of such survey shall be published on the school's website by the next succeeding first of July;

i. require the principal, superintendent or the principal's or superintendent's designee, to notify promptly the appropriate local law enforcement agency when such principal, superintendent or the principal's or superintendent's designee, believes that any harassment, bullying, coercive control or discrimination constitutes criminal conduct;

j. include appropriate references to the provisions of the school district's code of conduct, including the code of conduct for school coaches, adopted pursuant to section twenty-eight hundred one of this chapter that are relevant to harassment, bullying, coercive control and discrimination;

k. require each school, at least once during each school year, to provide all school employees, school coaches, students [~~and~~], parents or guardians and school board members or trustees with a written or electronic copy of the school district's policies created pursuant to this section, or a plain-language summary thereof, including notification of the process by which students, parents [~~and~~] or guardians, school employees, school coaches or school board members or trustees may report harassment, bullying or coercive control and discrimination [~~-, This subdivision shall not be construed to require additional distribution of such policies and guidelines if they are otherwise distributed to school employees, students and parents~~], provide copies of such plain-language summary to all students at a general assembly held at the beginning of the school year, and conspicuously post a written notification informing students about such policy, the name of the school employee designated to receive reports of harassment, bullying, coercive control or discrimination and the web address for the New York state center for school safety in the school lobby and in every restroom used by students as well as other parts of the school where students are likely to see such notification;

l. maintain current versions of the school district's policies created pursuant to this section on the school district's internet website, if one exists; and

m. include a school strategy to foster safe, responsible use of the internet and electronic communications; and

2. Guidelines to be used in school training programs to discourage the development of harassment, bullying, coercive control and discrimination, and to make school employees, school coaches and school board members or trustees aware of the effects of harassment, bullying, coercive control, cyberbullying and discrimination on students and that are designed:

a. to raise the awareness and sensitivity of school employees, school coaches and school board members or trustees to potential harassment, bullying, coercive control and discrimination, and

b. to enable employees, school coaches and school board members or trustees to prevent and respond to harassment, bullying, coercive control and discrimination; and

4. Guidelines relating to the development of measured, balanced and age-appropriate responses to instances of harassment, bullying, coercive control or discrimination by students, with remedies and procedures following a progressive model that make appropriate use of intervention, discipline and education, vary in method according to the nature of the

1 behavior, the developmental age of the student and the student's history
2 of problem behaviors, and are consistent with the district's code of
3 conduct; and

4 5. Training required by this section shall address the social patterns
5 of harassment, bullying, coercive control and discrimination, as defined
6 in section eleven of this article, including but not limited to those
7 acts based on a person's actual or perceived race, color, weight, age,
8 physical characteristics, national origin, ethnic group, religion, reli-
9 gious practice, disability, sexual orientation, gender or sex, the iden-
10 tification and mitigation of harassment, bullying, coercive control and
11 discrimination including but not limited to training in restorative
12 justice and mediation techniques, [~~and~~] strategies for effectively
13 addressing problems of exclusion, bias and aggression in educational
14 settings[~~+~~], and the recognition of suicide risks and warning signs and
15 how to refer students for further assessment and evaluation; and

16 6. The governing board or body of a local educational agency shall
17 review, at minimum every fifth year following the effective date of this
18 subdivision, its policies, procedures, and guidelines on harassment,
19 bullying, coercive control and discrimination and, if necessary, update
20 such policies, procedures, and guidelines.

21 § 7. Subdivisions 1 and 5 of section 14 of the education law, subdivi-
22 sion 1 as amended by chapter 102 of the laws of 2012, and subdivision 5
23 as amended by chapter 90 of the laws of 2013, are amended and a new
24 subdivision 6 is added to read as follows:

25 1. Provide direction, which may include development of model policies
26 and, to the extent possible, direct services, to school districts
27 related to preventing harassment, bullying, coercive control and
28 discrimination and to fostering an environment in every school where all
29 children can learn free of manifestations of bias;

30 5. [~~The commissioner shall prescribe~~] Prescribe regulations that
31 school professionals applying on or after December thirty-first, two
32 thousand thirteen for a certificate or license, including but not limit-
33 ed to a certificate or license valid for service as a classroom teacher,
34 school counselor, school psychologist, school social worker, school
35 coach, school administrator or supervisor or superintendent of schools
36 shall, in addition to all other certification or licensing requirements,
37 have completed training on the social patterns of harassment, bullying
38 and discrimination, as defined in section eleven of this article,
39 including but not limited to those acts based on a person's actual or
40 perceived race, color, weight, age, physical characteristics, national
41 origin, ethnic group, religion, religious practice, disability, sexual
42 orientation, gender or sex, the identification and mitigation of harass-
43 ment, bullying, coercive control and discrimination, [~~and~~] strategies
44 for effectively addressing problems of exclusion, bias and aggression in
45 educational settings and, for all such school professionals applying on
46 or after December thirty-first two thousand twenty-six for such a
47 certificate or license, recognizing suicide risks and warning signs and
48 how to refer students for further assessment and evaluation.

49 6. Develop model student, staff and family surveys in accordance with
50 section thirteen of this article to assist local education agencies to
51 conduct such surveys during the course of a school year.

52 § 8. Section 15 of the education law, as amended by chapter 102 of the
53 laws of 2012, is amended to read as follows:

54 § 15. Reporting by commissioner and use of reports. 1. The commis-
55 sioner shall create a procedure under which [~~material~~] relevant inci-
56 dents of harassment, bullying and discrimination on school grounds [~~or~~].

1 at a school function, or through any form of electronic communication
2 are reported to the department at least on an annual basis, provided
3 that such reporting shall not contain information identifiable with any
4 individual student. Such procedure shall provide that such reports
5 shall[~~, wherever possible,~~] also delineate the specific nature of such
6 incidents of harassment, bullying or coercive control and discrimi-
7 nation, [~~provided that the commissioner may comply with the requirements~~
8 ~~of this section through use of the existing uniform violent incident~~
9 ~~reporting system~~] including but not limited to whether an incident
10 constituted harassment, bullying, coercive control, cyberbullying,
11 discrimination or any combination thereof; whether an incident involved
12 a student, school employee, school coach or school board member or trus-
13 tee aggressor and whether such aggressor acted individually or in a
14 group; the school's response to such incident; whether a targeted
15 student withdrew from school or relocated schools within the current or
16 immediately subsequent school year following a report of an incident;
17 and the total number of reports dismissed and the resolution for each.
18 Notwithstanding any provision in this article to the contrary, effective
19 resolution of an incident does not negate the district's obligation to
20 report it to the department. In addition, the department [~~may conduct~~
21 ~~research or~~] shall request the comptroller to undertake studies to
22 determine compliance throughout the state with the provisions of this
23 article.

24 2. The commissioner shall use such reports and data to identify
25 schools and districts that are failing to meet the standards and objec-
26 tives of this article. The commissioner shall promulgate policies and
27 procedures for improving conditions at these schools to ensure proper
28 training, support, and compliance with all requirements.

29 3. The commissioner shall deliver the report referenced in subdivision
30 one of this section to the legislature, temporary president of the
31 senate, speaker of the assembly, chair of the senate education committee
32 and chair of the assembly education committee every two years on or
33 before the first day of November.

34 § 9. Section 16 of the education law, as amended by chapter 102 of the
35 laws of 2012, is amended to read as follows:

36 § 16. Protection of people who report harassment, bullying, coercive
37 control or discrimination. Any person having reasonable cause to suspect
38 that a student has been subjected to harassment, bullying, coercive
39 control or discrimination, by an employee, school coach, school board
40 member or trustee or student, on school grounds [~~or~~], at a school func-
41 tion or through any form of electronic communication, who, acting
42 reasonably and in good faith, reports such information to school offi-
43 cials, to the commissioner or to law enforcement authorities, acts in
44 compliance with paragraph e or i of subdivision one of section thirteen
45 of this article, or otherwise initiates, testifies, participates or
46 assists in any formal or informal proceedings under this article, shall
47 have immunity from any civil liability that may arise from the making of
48 such report or from initiating, testifying, participating or assisting
49 in such formal or informal proceedings, and no school district [~~or~~],
50 employee, school coach, or school board member or trustee shall take,
51 request or cause a retaliatory action against any such person who,
52 acting reasonably and in good faith, either makes such a report or
53 initiates, testifies, participates or assists in such formal or informal
54 proceedings.

55 § 10. Subdivision 1 and the opening paragraph and paragraphs m and n
56 of subdivision 2 of section 2801 of the education law, subdivision 1 as

1 amended by chapter 402 of the laws of 2005, the opening paragraph of
2 subdivision 2 as amended by chapter 380 of the laws of 2001, paragraph m
3 of subdivision 2 as amended and paragraph n of subdivision 2 as added by
4 chapter 482 of the laws of 2010, are amended and a new paragraph o of
5 subdivision 2 is added to read as follows:

6 1. a. For purposes of this section, ~~[school property]~~ the following
7 terms shall have the following meanings:

8 (i) "School property" means in or within any building, structure,
9 athletic playing field, playground, parking lot, or land contained with-
10 in the real property boundary line of a public elementary or secondary
11 school~~[-or]~~, in or on a school bus, as defined in section one hundred
12 forty-two of the vehicle and traffic law~~[-and a school function]~~, or
13 within a school administrative building.

14 (ii) "School function" ~~[shall mean]~~ means a school board or trustee
15 meeting or a school-sponsored or school-authorized ~~[extra-curricular]~~
16 extra curricular event or activity regardless of where such event or
17 activity takes place, including any event or activity that may take
18 place in another state including but not limited to field trips and
19 athletic practices, scrimmages and events.

20 b. This section shall also apply to cyberbullying, whether on or off
21 school property or at or away from a school function where such conduct
22 constitutes harassment as defined in section eleven of this chapter.

23 The board of education or the trustees, as defined in section two of
24 this chapter, of every school district within the state, however
25 created, and every board of cooperative educational services and county
26 vocational extension board, shall adopt and amend, as appropriate, a
27 code of conduct for the maintenance of order on school property, includ-
28 ing a school function, which shall govern the conduct of students,
29 teachers, coaches, board members and trustees, and other school person-
30 nel as well as visitors and shall provide for the enforcement thereof.
31 Such policy may be adopted by the school board or trustees only after at
32 least one public hearing that provides for the participation of school
33 personnel, parents, students and any other interested parties. Such code
34 of conduct shall include, at a minimum:

35 m. a minimum suspension period for acts that would qualify the pupil
36 to be defined as a violent pupil pursuant to paragraph a of subdivision
37 two-a of section thirty-two hundred fourteen of this chapter, provided
38 that the suspending authority may reduce such period on a case by case
39 basis to be consistent with any other state and federal law; ~~[and]~~

40 n. provisions to comply with ~~[article]~~ articles two and two-B of this
41 chapter~~[-]~~; and

42 o. an additional code of conduct for coaches. To assist local educa-
43 tional agencies in developing a code of conduct for coaches, the depart-
44 ment shall develop and maintain a model code in accordance with this
45 section to serve as a guide for local educational agencies. Such model
46 code shall be posted on the department's website and, at a minimum,
47 shall include provisions regarding the program mission, a coach's
48 health, safety and wellness obligations to the students, a coach's obli-
49 gations to parents and spectators, a central summary of mandated creden-
50 tials, training and licenses or certifications applicable to coaches, a
51 communications policy as between coaches and students and parents, and
52 an ethics policy.

53 § 11. Paragraph a of subdivision 2 of section 3006-a of the education
54 law, as added by section 2 of subpart C of part EE of chapter 56 of the
55 laws of 2015, is amended to read as follows:

1 a. (i) During each five-year registration period beginning on or after
2 July first, two thousand sixteen, an applicant for registration shall
3 successfully complete a minimum of one hundred hours of continuing
4 teacher and leader education, as defined by the commissioner, provided
5 that such one hundred hours shall include, at a minimum, five hours of
6 professional development that incorporates the principles and practices
7 of the department's culturally responsive-sustaining framework and is
8 related to dignity for all students and suicide prevention education, in
9 accordance with articles two and two-B of this chapter, that is provided
10 by or in coordination with a teacher or guidance counselor in every
11 school district.

12 (ii) Utilizing funds appropriated for the professional development
13 topics listed in subparagraph (i) of this paragraph, the department
14 shall create and provide model curricula and teaching and professional
15 development resources on its website. The department shall issue rigor-
16 ous standards for courses, programs, and activities, that shall qualify
17 as continuing teacher and leader education pursuant to this section. For
18 purposes of this section, a peer review teacher, or a principal acting
19 as an independent trained evaluator, conducting a classroom observation
20 as part of the teacher evaluation system pursuant to section three thou-
21 sand twelve-d of this article may credit such time towards [~~his or her~~]
22 their continuing teacher and leader effectiveness requirements.

23 § 12. This act shall take effect July 1, 2027.